Tamariki School Incorporated Constitution

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Introductory rules

1. Name and History

1.1 The name of the society is Tamariki School Incorporated (in this **Constitution** referred to as the '**Society**').

1.2 The **Society** was incorporated on 9 November 1966.

2. Charitable status

2.1 The **Society** is registered as a charitable entity under the Charities Act 2005.

3. Definitions

3.1 In this **Constitution**, unless the context requires otherwise, the following words and phrases have the following meanings:

'Act' means the Incorporated Societies Act 2022 or any Act which replaces it (including any amendments to it), and any regulations made under the Act or under any Act which replaces it.

'Annual General Meeting' means a meeting of the **Members** of the **Society** held once per year which, among other things, will receive and consider reports on the **Society**'s activities and finances.

'Chairperson' means the **Officer** responsible for chairing **General Meetings** and **Committee** meetings, and who provides leadership for the **Society**.

'Committee' means the **Society**'s governing body.

'Constitution' means the rules in this document.

'General Meeting' means either an **Annual General Meeting** or a **Special General Meeting** or an **Ordinary General Meeting** of the **Members** of the **Society**.

'Interested Member' means a **Member** who is interested in a matter for any of the reasons set out in section 62 of the **Act**.

'Interests Register' means the register of interests of **Officers**, kept under this **Constitution** and as required by section 73 of the **Act**.

'Matter' means—

a. the **Society**'s performance of its activities or exercise of its powers; or
b. an arrangement, agreement, or contract (a transaction) made or entered into, or proposed to be entered into, by the **Society**.

'Member' means a natural person who has consented to become a **Member** of the **Society** and has been properly admitted to the **Society** and who has not ceased to be a **Member** of the **Society**.

'Memorandum of Understanding' refers to the living document 'Memorandum of Understanding between the Tamariki School Incorporated (Proprietor) and the Tamariki School Board (School Board) and the Principal of Tamariki School and all Employees of Tamariki School'.

'Notice' to **Members** includes any notice given by email, post, or courier.

'Officer' means a natural person who is:

a. a member of the **Committee**, or
b. occupying a position in the **Society** that allows them to exercise significant influence over the management or administration of the **Society**, including the Property Officer and The Tamariki School Administrator.

'Ordinary General Meeting' means a meeting of the **Members** of the **Society** other than an **Annual General Meeting** or a **Special General Meeting.**

'Proprietor Appointee' means a **Member** elected or appointed by the **Society** to represent the **Society**'s interests (as the school Proprietor) on the Tamariki School Board.

'Register of Members' means the register of **Members** kept under this **Constitution** as required by section 79 of the **Act.**

'Secretary' means the **Officer** responsible for the matters specifically noted in this **Constitution.**

'Special Character' refers to the vision and purposes of Tamariki School as defined in the document 'The Tamariki School Special Character Statement'.

'Special General Meeting' means a meeting of the **Members,** other than an **Annual General Meeting** or an **Ordinary General Meeting**, called for a specific purpose or purposes.

'Tamariki School Community Member' means any natural person with a history of current or previous involvement with Tamariki School who is not a current **Member** of the **Society.**

'Working Days' mean as defined in the Legislation Act 2019. Examples of days that are not **Working Days** include, but are not limited to, the following — a Saturday, a Sunday, Waitangi Day, Good Friday, Easter Monday, ANZAC Day, the Sovereign's birthday, Te Rā Aro ki a Matariki / Matariki Observance Day, and Labour Day.

4. Purposes

4.1 The **Society** is established and maintained exclusively for charitable purposes (including any purposes ancillary to those charitable purposes), namely:

a. undertaking the role of Proprietor of Tamariki School, to advance education by providing an environment where children from the age of five years may learn in their own way under appropriate guidance, in accordance with the '1990 Tamariki School Integration Agreement' and within the **Special Character** of Tamariki School as required by the Education and Training Act 2020, Schedule 6, or any act in substitution thereof,

b. protecting the Tamariki School **Special Character** and maintaining the understanding and implementation of it amongst the community of parents, staff and children,
c. managing the school buildings and land to a minimum standard by being responsible for insurance, large value maintenance and property development,
d. being consulted by the Tamariki School Board about staff appointments deemed 'special positions' according to the Education and Training Act 2020, Schedule 6, clauses 50 and 52, and participating, through the **Proprietor Appointees**, in all staff appointments, as stated in Schedule 6, clause 46,
e. determining preferential status for enrolment for those children whose parents have a connection with the Tamariki School **Special Character** as required by the Education and Training Act 2020, Schedule 6, clause 26, and the Tamariki School Incorporated Integration Agreement, section 9,
f. requiring attendance dues and requesting **Special Character** donations as set by the **Society** to support delivery of the Tamariki School **Special Character**,
g. being in partnership with the Tamariki School Board and acting in accordance with the **Memorandum of Understanding** with the Board.

4.2 Any income, benefit, or advantage must be used to advance the charitable purposes of the **Society**.

5. Special Character - tikanga

5.1 The Tamariki School **Special Character** is the tikanga or culture of the **Society.**

5.2 The **Society** values collaborative decision making and restorative conflict resolution. This is underpinned by the values of cooperation, respect and trust with a strong commitment to the wellbeing and autonomy of children.

5.3 This **Constitution** shall be interpreted with regard to the Tamariki School **Special Character**.

6. Act and Regulations

6.1 Nothing in this **Constitution** authorises the **Society** to do anything which contravenes or is inconsistent with the **Act**, any regulations made under the **Act**, or any other legislation, particularly the Education and Training Act 2020, Schedule 6.

7. Registered office

7.1 The registered office of the **Society** is Tamariki School, 86 St Johns Street, Woolston, Christchurch 8062.

7.2 Changes to the registered office shall be notified to the Registrar of Incorporated Societies at least 5 working days before the change of address for the registered office is due to take effect, and in a form and as required by the **Act.**

8. Contact person

8.1 The **Society** shall have at least 1 but no more than 3 contact person(s) whom the Registrar can contact when needed.

8.2 The **Society**'s contact person must be at least 18 years of age, and ordinarily resident in New Zealand.

8.3 A contact person will be appointed by the **Committee.**

8.4 Each contact person's name must be provided to the Registrar of Incorporated Societies, along with their contact details, including a physical address or an email address, and a telephone number.

8.5 Any change in that contact person or that person's name or contact details shall be advised to the Registrar of Incorporated Societies within 20 **Working Days** of the **Society** becoming aware of the change.

Members

9. Minimum number of members

9.1 The **Society** shall maintain at least 10 **Members** on its register as required by the **Act.**

10. Becoming a member: consent

10.1 Every applicant for membership must consent in writing to becoming a **Member.** Completion of a new membership application form or renewal of membership form is deemed to constitute consent to becoming a **Member** of the **Society.**

11. Becoming a member: process

11.1 Membership of the **Society** may be granted to natural persons with a history of current or previous involvement with Tamariki School.

11.2 An applicant for membership must complete and sign any application form, supply any information, or attend an interview as may be reasonably required by the **Committee** regarding an application for membership.

11.3 An applicant will become a **Member** on payment of an annual subscription to the **Secretary** and when their membership application has been minuted at a **General Meeting.**

11.4 However, if a former **Member**'s membership was terminated following a disciplinary or dispute resolution process, the applicant may be re-admitted as a **Member** of the **Society** only by a resolution passed at a **General Meeting** on the recommendation of the **Committee.**

11.5 The completed application form and consent of every **Member** to become a **Society Member** shall be retained in the **Society**'s membership records.

12. Members' obligations and rights

12.1 Every **Member** shall provide the **Society** in writing with their name and contact details (namely, email address and a telephone number) and promptly advise the **Society** in writing of any changes to those details.

12.2 All **Members** shall promote the interests and purposes of the **Society** and shall do nothing to bring the **Society** into disrepute.

12.3 All **Members** shall uphold the Tamariki School **Special Character.**

12.4 A **Member** is only entitled to vote at **General Meetings** if a current membership form has been completed, their membership has been minuted at a **General Meeting**, and the annual subscription has been paid to the **Society** by the due date.

12.5 No **Member** is liable for an obligation of the **Society** by reason only of being a **Member** (Part 3 s78 of the **Act**).

13. Subscriptions and fees

13.1 The annual subscription for membership for the current financial year shall be set by resolution of an **Annual General Meeting**.

13.2 Any **Member** failing to renew their membership and pay the annual subscription by the day of the **AGM** shall be considered as unfinancial and shall have no membership rights.

14. Ceasing to be a member

14.1 A **Member** ceases to be a **Member**—

a. upon the tender of their written resignation to the **Secretary**, or
b. on termination of a **Member**'s membership following a dispute resolution process under this **Constitution**, or
c. on death, or
d. by failure to renew their membership and pay their subscription by the day of the **AGM**, or
e. by resolution of the **Committee** to a **Special General Meeting** where, in the opinion of the **Committee,** the **Member** has —
    1. brought the **Society** into disrepute and/or
    2. seriously or persistently not acted in accordance with the Tamariki School **Special Character**,

    and where the **Special General Meeting** accepts the **Committee**'s resolution, by consensus if possible, or by a two thirds majority vote.

14.2 Where 14.1.e applies, the Principal of Tamariki School is to be specifically notified about the business of the **Special General Meeting** with 10 **Working Days' Notice**.

14.3 Cessation of membership will take effect from (as applicable)—

a. the date of receipt of the **Member**'s notice of resignation by the **Secretary** (or any subsequent date stated in the notice of resignation), or
b. the date of termination of the **Member**'s membership under this **Constitution**, or
c. the date of death of the **Member**, or
d. the date specified in a resolution of the **Committee**, voted on and passed at a **Special General** Meeting, and when a **Member**'s membership has been thus terminated the **Committee** shall promptly notify the former **Member** in writing.

15. Obligations once membership has ceased

15.1 A **Member** who has ceased to be a **Member** under this **Constitution**—

a. shall cease to hold themselves out as a **Member** of the **Society**, and
b. on request of the **Committee**, shall return to the **Society** any specified material provided to the former **Member** by the **Society**,
c. shall cease to be entitled to any of the rights of a **Society Member**.

16. Becoming a member again

16.1 Any former **Member** may apply for renewed membership in the manner prescribed for new applicants.

16.2 But, if a former **Member**'s membership was terminated following a disciplinary or dispute resolution process, the applicant may be re-admitted only by a resolution passed at a **General Meeting** on the recommendation of the **Committee.**

General meetings

17. Procedures for all general meetings

17.1 The **Committee** shall give all **Members Notice** of the business to be conducted at that **General Meeting** with at least—

a. 5 **Working Days**' written **Notice** of any **Ordinary General Meeting**, or
b. 20 **Working Days'** written **Notice** of any **Annual General Meeting**, or
c. 10 **Working Days'** written **Notice** of any **Special General Meeting.**

17.2 That **Notice** will be addressed to the **Member** at the contact email address notified to the **Society** and recorded in the **Society**'s **Register of Members.** The **General Meeting** and its business will not be invalidated simply because one or more **Members** do not receive the **Notice** of the **General Meeting.**

17.3 Only financial **Members** may vote at **General Meetings** in person by presence at the meeting venue and/or using any real-time electronic audio or audio/visual communication that gives each **Member** a reasonable opportunity to participate.

17.4 No **General Meeting** may be held unless at least 6 eligible financial **Members** for any **Ordinary General Meeting**, or 10 financial **Members** for any **Annual General Meeting** or **Special General Meeting**, attend throughout the meeting and this will constitute a quorum.

17.5 If, within half an hour after the time appointed for a meeting, a quorum is not present or if a meeting loses its quorum because of early departure, the meeting – if convened upon request of **Members** – shall be dissolved. In any other case it shall stand adjourned to a day, time and place determined by the **Chairperson** of the **Society**, and if at such adjourned meeting a quorum is not present those **Members** present in person shall be deemed to constitute a sufficient quorum.

17.6 Each **General Meeting** shall be chaired by the **Chairperson** or, if the **Chairperson** is not available, by an **Officer** or **Member** designated by the **Chairperson** or agreed by a **General Meeting.**

17.7 A **Member** is entitled to exercise one vote on any motion at a **General Meeting** in person, and voting at a **General Meeting** shall usually be by show of hands or, on determination of the **Chairperson**, by secret ballot. At least two **Society Officers** shall administer any secret ballot. The vote tallies of a secret ballot will be declared.

17.8 Unless otherwise required by this **Constitution**, all questions shall be decided by a simple majority of those in attendance in person or via electronic means by voting at a **General Meeting.**

17.9 Any decisions made when a quorum is not present are not valid.

17.10 The **Society** may pass a written resolution in lieu of a **General Meeting**, and a written resolution is as valid for the purposes of the **Act** and this **Constitution** as if it had been passed

at a **General Meeting** if it is approved by more than 50 percent of all **Members.** A written resolution may consist of 1 or more physical or electronic documents each proposed by, or on behalf of, 1 or more **Members.** A **Member** may give their approval to a written resolution by signing the resolution or giving approval to the resolution in any other manner permitted by the **Constitution** and specified in the resolution.

17.11 **General Meetings** may be held at one or more venues by **Members** present in person and/or using any real-time electronic audio or audio/visual communication that gives each **Member** a reasonable opportunity to participate.

17.12 Any person chairing a **General Meeting** may —

a. With the consent of a simple majority of **Members** present at any **General Meeting** adjourn the **General Meeting** from time to time and from place to place but no business shall be transacted at any adjourned **General Meeting** other than the business left unfinished at the meeting from which the adjournment took place.
b. Direct that any person not entitled to be present at the **General Meeting**, or obstructing the business of the **General Meeting**, or behaving in a disorderly manner, or being abusive, or failing to abide by the directions of the **Chairperson** be removed from the **General Meeting**, and
c. In the absence of a quorum or in the case of emergency, adjourn the **General Meeting** or declare it closed.

18. Minutes

18.1 The **Society** must keep minutes of all **General Meetings.**

19. Annual General Meetings: when they will be held

19.1 An **Annual General Meeting** shall be held once a year on a date, and at a location and/or using any real-time electronic audio or audio/visual communication that gives each **Member** a reasonable opportunity to participate.

19.2 The **Annual General Meeting** must be held no later than the earlier of the following—

a. 30 June, which is 6 months after the balance date of the **Society**
b. 15 months after the previous annual meeting

20. Annual General Meetings: business

20.1 The business of an **Annual General Meeting** shall be to—

a. confirm the minutes of the last **Annual General Meeting** and of any **Special General Meeting** held since the last **Ordinary General Meeting**,
b. adopt the **Chairperson**'s annual report on the operations and affairs of the **Society**,
c. adopt the Treasurer's report on the finances of the **Society**, and the annual financial statements,
d. table the annual report of the **Proprietor Appointees**
e. table the annual report of the Principal of Tamariki School
f. consider any motions of which prior notice has been given to **Members** with notice of the **Meeting**,

g. consider any general business,
h. undertake the election of **Officers**
i. review and/or appoint three or more authorisers for payments from the **Society** accounts
j. review the annual membership subscription, see 13.1

20.2 The **Committee** must, at each **Annual General Meeting**, present the following information—
a. an annual report on the operation and affairs of the **Society** during the most recently completed accounting period,
b. the annual financial statements for that period, and
c. notice of any disclosures of conflicts of interest made by **Officers** during that period (including a summary of the matters, or types of matters, to which those disclosures relate).

20.3 The **Proprietor Appointees** on the Tamariki School Board must present an annual report at each **Annual General Meeting.**

21. Special General Meetings

21.1 **Special General Meetings** may be called at any time by the **Committee** by resolution or by an **Ordinary** or **Annual General Meeting General Meeting** by resolution.

21.2 The **Committee** must promptly call a **Special General Meeting** if it receives a written request signed by at least 25 percent of **Members.**

21.3 Any resolution or written request must state the business that the **Special General Meeting** is to deal with.

21.4 The rules in this **Constitution** relating to the procedure to be followed at **General Meetings** shall apply to a **Special General Meeting.** A **Special General Meeting** shall only consider and deal with the business specified in the **Committee**'s or **General Meeting** resolution or in the written request by **Members** for the **Special General Meeting.**

21.5 The minutes of a **Special General Meeting** shall be confirmed at the next **General Meeting.**

22. Ordinary General Meetings

22.1 **Ordinary General Meetings** shall be held at least four times a year.

Committee

23. Committee composition

23.1 The **Committee** will consist of at least 3 **Officers.**

23.2 **Officers** on the **Committee** must be **Members** of the **Society**.

23.3 The **Committee** will be comprised of the following **Officers**:
a. the **Chairperson**
b. the **Secretary**
c. the Treasurer
d. any other **Officers** appointed by a **General Meeting**

24. Functions of the committee

24.1 From the end of each **Annual General Meeting** until the end of the next, the **Society** shall be under the supervision of the **Committee** in accordance with the Incorporated Societies Act

2022, any Regulations made under that **Act**, this **Constitution,** and relevant decisions made at **General Meetings.**

25. Powers of the committee

25.1 The **Committee** has all the powers necessary for supervising the operation and affairs of the **Society**, subject to such modifications, exceptions, or limitations as are contained in the **Act** or in this **Constitution.**

25.2 The **Committee** will bring any matters related to upholding the Tamariki School **Special Character** to a **General Meeting** for discussion and decision making.

25.3 The **Committee** will ensure property and financial matters are dealt with according to established **Society** processes or will bring them to a **General Meeting** for discussion and decision making.

26. Sub-committees

26.1 A **General Meeting** may appoint sub-committees consisting of such persons and for such purposes as it thinks fit. Unless otherwise resolved by a **General Meeting—**

a. the quorum of every sub-committee is half the members of the sub-committee but not less than 2,
b. no sub-committee shall have power to co-opt additional members,
c. a sub-committee must not commit the **Society** to any financial expenditure without delegated approval from a **General Meeting**, and
d. a sub-committee must not further delegate any of its powers.

27. General matters: committees

27.1 The scope of **Committee** meetings should fall within the limits in 24 and 25.

27.2 The **Committee** and any sub-committee may meet in person by presence at the meeting venue and/or using any real-time electronic audio or audio/visual communication that gives each committee member a reasonable opportunity to participate.

27.3 The **Committee** and any sub-committee may act by resolution approved using any real-time electronic audio or audio/visual communication that gives each committee member a reasonable opportunity to participate, or through a written ballot conducted by email or electronic voting system, and any such resolution shall be recorded in the minutes of the next **General Meeting.**

27.4 Other than as prescribed by the **Act** or this **Constitution**, the **Committee** or a **General Meeting**, any sub-committee may regulate its proceedings as it thinks fit.

Committee meetings

28. Procedure

28.1 The **Committee** should only need to meet outside **General Meetings** in matters of complaint or dispute, or for minor, urgent or safety matters. All decisions should be reported back to **General Meetings** except where issues of privacy preclude this.

28.2 It is expected that, when appropriate to the matters under discussion, the **Committee** should consult, and/or include in meetings, any of the following: the Principal of Tamariki School, the **Proprietor Appointees**, or other non-**Committee Officers.**

28.3 Only **Committee** members elected or appointed at a **General Meeting** have voting rights for decision making.

28.4 Any matters on which the **Committee** needs to make decisions between **General Meetings** require a consensus agreement from all available **Committee members**. In the case of a disagreement between **Committee** members, the matter must be referred to a **General Meeting.**

28.5 The quorum for **Committee** meetings is at least half the number of members of the **Committee.**

29. Calling meetings

29.1 The **Committee** shall meet as required at such times and places and in such manner (including by electronic audio or audio/visual communication) as it may determine and otherwise where and as convened by the **Chairperson** or **Secretary.**

29.2 The **Secretary**, or another **Committee** member nominated by the **Committee**, shall give to all **Committee** members not less than 5 **Working Days'** notice of **Committee** meetings, but in cases of urgency a shorter period of notice shall suffice.

Officers

30. Qualifications of officers

30.1 Every **Officer** must be a **Member** who—

a. has consented in writing to be an officer of the **Society**, and
b. certifies that they are not disqualified from being elected or appointed or otherwise holding office as an **Officer** of the **Society.**

30.2 **Officers** must not be disqualified under section 47(3) of the **Act** or section 36B of the Charities Act 2005 from being appointed or holding office as an **Officer** of the **Society**, namely **Officers** may not be —

a. a person who is under 16 years of age
b. a person who is an undischarged bankrupt
c. a person who is prohibited from being a director or promoter of, or being concerned or taking part in the management of, an incorporated or unincorporated body under the Companies Act 1993, the Financial Markets Conduct Act 2013, or the Takeovers Act 1993, or any other similar legislation
d. a person who is disqualified from being a member of the governing body of a charitable entity under section 36C of the Charities Act 2005
e. a person who has been convicted of any of the following, and has been sentenced for the offence, within the last 7 years —
    1. an offence under subpart 6 of Part 4 of the **Act**
    2. a crime involving dishonesty (within the meaning of section 2(1) of the Crimes Act 1961)
    3. an offence under section 143B of the Tax Administration Act 1994

4. an offence under section 22(2) of the **Act**
5. an offence, in a country other than New Zealand, that is substantially similar to an offence specified in subparagraphs (1) to (3)
6. a money laundering offence or an offence relating to the financing of terrorism, whether in New Zealand or elsewhere

f. a person subject to:
1. a banning order under subpart 7 of Part 4 of the **Act**, or
2. an order under section 108 of the Credit Contracts and Consumer Finance Act 2003, or
3. a forfeiture order under the Criminal Proceeds (Recovery) Act 2009, or
4. a property order made under the Protection of Personal and Property Rights Act 1988, or whose property is managed by a trustee corporation under section 32 of that Act.

g. a person who is subject to an order that is substantially similar to an order referred to in the previous paragraph (f) under a law of a country, State, or territory outside New Zealand that is a country, State, or territory prescribed by the regulations (if any) of the **Act.**

30.3 Prior to or on election or appointment as an **Officer** a person must —
a. consent in writing to be an **Officer**, and
b. certify in writing that they are not disqualified from being elected or appointed as an **Officer** either by this **Constitution** or the **Act.**

30.4 Written certificates (30.3) from each **Officer** shall be retained in the **Society**'s records.

31. Officers' duties and roles

31.1 At all times each **Officer**:
a. shall act in good faith and in what they believe to be the best interests of the **Society**,
b. must exercise all powers for a proper purpose,
c. must not act, or agree to the **Society** acting, in a manner that contravenes the **Act** or this **Constitution**,
d. when exercising powers or performing duties as an **Officer**, must exercise the care and diligence that a reasonable person with the same responsibilities would exercise in the same circumstances taking into account, but without limitation:
1. the nature of the **Society**,
2. the nature of the decision, and
3. the position of the **Officer** and the nature of the responsibilities undertaken by that **Officer**

e. must not agree to the activities of the **Society** being carried on in a manner likely to create a substantial risk of serious loss to the **Society** or to the **Society**'s creditors, or cause or allow the activities of the **Society** to be carried on in a manner likely to create a substantial risk of serious loss to the **Society** or to the **Society**'s creditors,
f. must not agree to the **Society** incurring an obligation except when acting within the delegation of a **General Meeting** and when the **Officer** believes at that time, on reasonable grounds, that the **Society** will be able to perform the obligation when it is required to do so, and
g. must act in accordance with the **Special Character.**

31.2 The **Officers** of the Society shall include:
a. the **Chairperson**

b. the **Secretary**
c. the Treasurer
d. the Property Officer
e. the Privacy Officer

31.3 The Principal of Tamariki School shall be appointed as an ex officio **Officer** of the **Society**.

31.4 The Tamariki School Administrator shall be appointed as an ex officio **Officer** of the **Society**.

32. Proprietor Appointees

32.1 The **Society** will elect or appoint two **Members** as **Proprietor Appointees** on the Tamariki School Board.

32.2 The **Proprietor Appointees** will attend **Society General Meetings** and Tamariki School Board meetings.

32.3 Before appointment, a nominated **Proprietor Appointee** must supply a signed consent to appointment and a certificate that the nominee is not disqualified from being appointed or holding office as a **Proprietor Appointee** (as described in 30 'Qualifications of Officers').

32.4 The term of office for a **Proprietor Appointee** shall be a maximum of six years.

32.5 At the expiry of their term of office, or at a later time, a former **Proprietor Appointee** is eligible to be nominated for re-election.

33. Election or appointment of officers

33.1 The election of **Officers** shall be conducted as follows:

a. **Officers** shall be nominated and elected by **Members** at the **Annual General Meeting**.
b. Only nominees who are not disqualified from being appointed or holding office as an **Officer** (see 30 'Qualifications of Officers' rules above) may stand for election.
c. Nominees shall give consent to the nomination in writing and shall sign a certificate stating that they are not disqualified from being elected and holding office as an **Officer** of the **Society**.
d. Votes shall be cast in such a manner as the **Chairperson** of the **Annual General Meeting** shall determine.
e. If required, two **Members** (who are not nominees) shall act as scrutineers for the counting of the votes and destruction of any voting papers.
f. In the event of any vote being tied, the tie shall be resolved by discussion at a **General Meeting**.
g. The failure for any reason of any **Member** to receive **Notice** of the **General Meeting** shall not invalidate the election.

33.2 In addition to **Officers** elected under the foregoing provisions of this rule, a **General Meeting** may elect or appoint other **Members** as **Officers** to cover vacancies or for a specific purpose, for a limited period, or generally until the next **Annual General Meeting**. Any such appointee must, before appointment, supply a signed consent to appointment and a certificate that the nominee is not disqualified from being appointed or holding office as an **Officer** (as described in 30 'Qualifications of Officers').

34. Term of office

34.1 The term of office for all **Officers** elected to the **Committee** shall be 1 year, expiring at the end of the **Annual General Meeting** in the year corresponding with the last year of each **Officer's** term of office.

34.2 Any **Officer** is eligible to be nominated for re-election (subject to 30 and 31).

35. Removal of officers

35.1 An **Officer** may be removed as an **Officer** by resolution of the **Committee** brought to a **General Meeting** or by the **Society** where in the opinion of the **Committee** or the **Society** —

a. The **Officer** has brought the **Society** into disrepute.
b. The **Officer** has failed to disclose a serious conflict of interest.
c. The **Officer** has failed to uphold the Tamariki School **Special Character**.

with effect from the date specified in a resolution which has been accepted by a **General Meeting** of the **Society**.

35.2 Should any **Officer** be absent three consecutive **General Meetings** without providing a timely and reasonable explanation to the **Secretary** of the **Society**, or where the **Society** cannot accept, for practical or other reasons, an **Officer**'s continued absence, or their neglect of duties (even if attending meetings), the **Society** may resolve to remove the **Officer** from their role and may proceed to fill the vacancy thus created as described in 33.2.

36. Ceasing to hold office

36.1 An **Officer** ceases to hold office when they resign (by notice in writing to the **Committee**), are removed, die, or otherwise vacate office in accordance with section 50(1) of the **Act.**

36.2 Each **Officer** shall, on request of the **Committee,** within 5 **Working Days** of submitting a resignation or ceasing to hold office, deliver to the **Committee** any specified property of the **Society** held by such former **Officer.**

36.3 A former **Officer** is responsible for disposing securely of any confidential **Society** material not returned to the **Committee.**

37. Conflicts of interest

37.1 An **Officer**, or other member of a committee, who is an **Interested Member** in respect of any **Matter** being considered by the **Society**, the **Committee** or a sub-committee, must disclose details of the nature and extent of the interest (including any monetary value of the interest if it can be quantified) to the **Committee** and this information must be recorded in an **Interests Register** kept by the **Secretary** on behalf of the **Committee.**

37.2 Disclosure must be made as soon as practicable after the **Officer** or member of a committee becomes aware that they are interested in the **Matter.**

37.3 An **Officer** or member of a committee who is an **Interested Member** regarding a **Matter**—

a. must not vote or take part in the decision of the committee relating to the **Matter** unless all attending members of the committee who are not interested in the **Matter** consent; and

b. must not sign any document relating to the entry into a transaction or the initiation of the **Matter** unless all attending members of the committee who are not interested in the **Matter** consent; but
c. may take part in any discussion of the committee relating to the **Matter** and be present at the time of the decision of the committee (unless the committee decides otherwise).

37.4 However, an **Officer** or member of a committee who is prevented from voting on a **Matter** may still be counted for the purpose of determining whether there is a quorum at any meeting at which the **Matter** is considered.

37.5 Where 50 per cent or more of **Officers** are prevented from voting on a **Matter** because they are interested in that **Matter**, an **Ordinary General Meeting or a Special General Meeting** must be called to consider how to proceed with the **Matter.**

37.6 Where 50 per cent or more of the members of a sub-committee are prevented from voting on a **Matter** because they are interested in that **Matter**, the **Committee** shall consider how to proceed with the **Matter.**

Records

38. Register of Members

38.1 The **Society** shall keep an up-to-date **Register of Members.**

38.2 For each current **Member**, the information contained in the **Register of Members** shall include:
a. their name, and
b. the date on which they became a **Member** (if there is no record of the date they joined, this date will be recorded as 'Unknown'), and
c. their contact details, including —
1. an email address, and
2. a telephone number.

38.3 Every current **Member** shall promptly advise the **Society** of any change of their contact details.

38.4 The **Society** shall also keep a record of the former **Members** of the **Society.** For each **Member** who ceased to be a **Member** within the previous 7 years, the **Society** will record:
a. the former **Member**'s name, and
b. the date the former **Member** ceased to be a **Member**, and
c. if the former **Member**'s membership was terminated following a dispute or disciplinary process (see also 11.4 and 16.2)

38.5 Membership records will be securely disposed of after 7 years.

39. Interests Register

39.1 On behalf of the **Committee, the Secretary** shall maintain an up-to-date register of the interests disclosed by **Officers** and by members of any sub-committee.

40. Access to information for members

40.1 A **Member** may at any time make a written request to the **Society** for information held by the **Society**.

40.2 The request must specify the information sought in sufficient detail to enable the information to be identified.

40.3 The **Society** must, within 20 working days after receiving a request —

a. provide the information, or
b. agree to provide the information within a specified period, or
c. agree to provide the information within a specified period if the **Member** pays a reasonable charge to the **Society** (which must be specified and explained) to meet the cost of providing the information, or
d. refuse to provide the information, specifying the reasons for the refusal.

40.4 Without limiting the reasons for which the **Society** may refuse to provide the information, the **Society** may refuse to provide the information if —

a. withholding the information is necessary to protect the privacy of natural persons, including that of deceased persons, or
b. the disclosure of the information would, or would be likely to, prejudice the commercial position of the **Society** or of any of its **Members**, or
c. the disclosure of the information would, or would be likely to, prejudice the financial or commercial position of any other person, whether or not that person supplied the information to the **Society**, or
d. the information is not relevant to the operation or affairs of the **Society**, or
e. withholding the information is necessary to maintain legal professional privilege, or
f. the disclosure of the information would, or would be likely to, breach an enactment, or
g. the burden to the **Society** in responding to the request is substantially disproportionate to any benefit that the **Member** (or any other person) will or may receive from the disclosure of the information, or
h. the request for the information is frivolous or vexatious, or
i. the request seeks information about a dispute or complaint which is or has been the subject of the procedures for resolving such matters under this **Constitution** and the **Act**.

40.5 If the **Society** requires the **Member** to pay a charge for the information (40.3.c), the **Member** may withdraw the request, and must be treated as having done so unless, within 10 **Working Days** after receiving notification of the charge, the **Member** informs the **Society** —

a. that the **Member** will pay the charge; or
b. that the **Member** considers the charge to be unreasonable (in this situation, the Member may make use of a Complaints process or apply to the Court, as outlined in Section 83 of the **Act**).

40.6 Nothing in this rule limits Information Privacy Principle 6 of the Privacy Act 2020 relating to access to personal information.

Finances

41. Control and management

41.1 The funds and property of the **Society** shall be—

a. controlled, invested and disposed of by the **Committee**, subject to this **Constitution**, and

b. devoted solely to the promotion of the purposes of the **Society**.

41.2 The **Committee** shall maintain bank accounts in the name of the **Society**.

41.3 All money received on account of the **Society** shall be banked within 10 **Working Days** of receipt.

41.4 Financial obligations, aside from those covered by 41.5, shall only be entered into when authority has been delegated by a **General Meeting**.

41.5 The **Committee** has authority to make minor, routine or urgent financial decisions between **General Meetings**.

41.6 The **Committee** shall report all payments to the next **General Meeting**.

41.7 The **Committee** must ensure that there are kept at all times accounting records that—

a. correctly record the transactions of the **Society**, and
b. allow the **Society** to produce financial statements that comply with the requirements of the **Act**, and
c. would enable the financial statements to be readily and properly audited (as required under any legislation and the **Society**'s **Constitution**).

41.8 The **Committee** must establish and maintain a satisfactory system of control of the **Society**'s accounting records.

41.9 Two online authorisations are required for payments made from the **Society** accounts.

41.10 The accounting records must be kept in written form or in a form or manner that is easily accessible and convertible into written form.

41.11 The accounting records must be kept for the current accounting period and for the last 7 completed accounting periods of the **Society**.

42. Balance date

42.1 The **Society**'s financial year shall commence on 1 January of each year and end on 31 December (the latter date being the **Society**'s balance date).

Complaint and Dispute Resolution

43. Tamariki School Special Character Small Meetings

43.1 The **Society** values natural justice, collaborative decision making, truth and reconciliation and restorative conflict resolution.

43.2 Under the **Special Character**, initial informal conversations with the complainant, or small meetings among the parties involved are the Tamariki School community's usual means of communication about concerns and disputes. Small meetings are to be chaired by a **Member** of the **Society**. The purpose of these meetings is to give an opportunity for truthful expression, listening and open understanding. For meeting guidelines refer to "Guidelines and Procedures for Small Meetings".

43.3 The **Society** has a strong preference that matters of dispute or complaint be addressed using Tamariki School **Special Character** processes, including the Tamariki School meeting system, prior to, or instead of, initiating a formal dispute resolution or complaints process. This does not diminish the right of any **Member** or **Officer** or the **Society** or any other party invloved with the complaint to choose to make a formal complaint, or to initiate the dispute resolution process, or

if a complaint has been made against them, request the complaint be managed through the dispute resolution process.

43.4 A **Member**, **Officer** or the **Society,** or a **Tamariki School Community Member** who has concerns about **Society** matters, may choose to use a **Special Character** small meeting as the starting point for discussing a concern or for assisting them to discern whether a concern is a dispute or complaint as defined in section 44.

43.5 Notwithstanding 43.3, any person bringing a concern, complaint or dispute, or any **Officer** or **Member** who is Chairperson for a **Special Character** small meeting in response to a concern, complaint or dispute, may decide a small meeting process is unsuitable because:

a. the matter is a dispute or complaint as defined in 44.3
b. the small meeting does not seem to be an appropriate process for that complaint or dispute

In this case, the complainant may choose to make use of the processes in 44-51.

44. Meanings of dispute and complaint

44.1 A dispute is a disagreement or conflict involving the **Society** and/or its **Officers** and/or **Members** in relation to specific allegations set out in 44.3.

44.2 The disagreement or conflict may be between any of the following persons—

a. 2 or more **Members**
b. 1 or more **Members** or **Officers** and the **Society**
c. 1 or more **Members** *and* 1 or more **Officers**
d. 2 or more **Officers**
e. 1 or more **Tamariki School Community Members** *and* 1 or more **Members** or **Officers,** or the **Society**

44.3 The disagreement or conflict relates to any of the following allegations—

a. a **Member** or an **Officer** has engaged in misconduct
b. a **Member** or an **Officer** has breached, or is likely to breach, a duty under the **Society**'s **Constitution** or bylaws or the **Act**
c. the **Society** has breached, or is likely to breach, a duty under the **Society**'s **Constitution** or bylaws or the **Act**
d. a **Member's** rights or interests as a **Member** have been damaged or **Member**'s rights or interests generally have been damaged
e. a **Member** or an **Officer** or a **Tamariki School Community Member** has experienced damage or threat to their physical or emotional safety through a **Member** or **Officer** or the **Society** neglecting or enacting the purposes or functions of the **Society** as stated in the **Constitution** or bylaws.

44.4 A **Member** or an **Officer** or a **Tamariki School Community Member** may make a complaint by giving to the **Committee** (or a complaints subcommittee) a notice in writing that—

a. states that the **Member** or **Officer** or **Tamariki School Community Member** is starting a procedure for resolving a dispute in accordance with the **Society**'s **Constitution**; and

b. sets out the allegation(s) to which the dispute relates and whom the allegation or allegations is or are against; and
c. sets out any other information or allegations reasonably required by the **Society**.

44.5 By resolution of the **Committee** or of a **General Meeting**, the **Society** may make a complaint involving an allegation against a **Member** or an **Officer** by giving to the **Member** or **Officer** a notice in writing that—

a. states that the **Society** is starting a procedure for resolving a dispute in accordance with the **Society**'s **Constitution**; and
b. sets out the allegation to which the dispute relates.

44.6 The information setting out the allegations must be sufficiently detailed to ensure that a person against whom an allegation or allegations are made is fairly advised of the allegation or allegations concerning them, with sufficient details given to enable that person to prepare a response.

44.7 A complaint may be made in any other reasonable manner permitted by the **Society**'s **Constitution**.

44.8 All **Members** (including the **Committee**) are obliged to cooperate to resolve disputes efficiently, fairly, and with minimum disruption to the **Society**'s activities.

44.9 The complainant raising a dispute, and the **Committee**, should consider and discuss whether a dispute may best be resolved through a Tamariki School **Special Character** meeting, informal discussions, mediation, arbitration, or a tikanga-based practice. Where mediation or arbitration is agreed on, the parties will sign a suitable mediation or arbitration agreement.

45. How complaint is made

45.1 A **Member** or an **Officer** or a **Tamariki School Community Member** may make a complaint by giving to the **Committee** (or a complaints subcommittee) a notice in writing that—

a. states that the **Member** or **Officer** or **Tamariki School Community Member** is starting a procedure for resolving a dispute in accordance with the **Society**'s **Constitution**; and
b. sets out the allegation or allegations to which the dispute relates and whom the allegation is against; and
c. sets out any other information reasonably required by the **Society**.

45.2 Following a resolution of the **Committee** or of a **General Meeting**, the **Society** may make a complaint involving an allegation or allegations against a **Member** or an **Officer** by giving to the **Member** or **Officer** a notice in writing that—

a. states that the **Society** is starting a procedure for resolving a dispute in accordance with the **Society**'s **Constitution**; and
b. sets out the allegation to which the dispute relates.

45.3 The information given under subclause 45.1b or 45.2b must be sufficient to ensure that a person against whom an allegation is made is fairly advised of the allegation or allegations concerning them, with sufficient details given to enable that person to prepare a response.

45.4 A complaint may be made in any other reasonable manner permitted by the **Constitution**.

46. Person who makes complaint has right to be heard

46.1 A **Member** or an **Officer** or a **Tamariki School Community Member** who makes a complaint has a right to be heard before the complaint is resolved or any outcome is determined.

46.2 If the **Society** makes a complaint—

a. the **Society** has a right to be heard before the complaint is resolved or any outcome is determined; and
b. one or more **Officers**, or jointly an **Officer** and **Member**, may exercise that right on behalf of the **Society**.

46.3 Without limiting the manner in which the **Member**, **Officer**, **Society** or **Tamariki School Community Member** may be given the right to be heard, they must be taken to have been given the right if—

a. they have a reasonable opportunity to be heard in writing or at an oral hearing (if one is held); and
b. an oral hearing is held if the decision maker considers that an oral hearing is needed to ensure an adequate hearing; and
c. an oral hearing (if any) is held before the decision maker; and
d. the **Member**'s, **Officer**'s, **Society**'s or **Tamariki School Community Member**'s written or verbal statement or submissions (if any) are considered by the decision maker.

47. Person who is subject of complaint has right to be heard

47.1 This clause applies if a complaint involves an allegation that a **Member**, an **Officer**, or the **Society** (the 'respondent')—

a. has engaged in misconduct; or
b. has breached, or is likely to breach, a duty under the **Society**'s **Constitution** or bylaws or this **Act**; or
c. has damaged the rights or interests of a **Member** or the rights or interests of **Members** generally
d. has damaged or threatened the physical or emotional safety of a **Member** or an **Officer** or a **Tamariki School Community Member** through neglecting or enacting the purposes or functions of the **Society**

47.2 The respondent has a right to be heard before the complaint is resolved or any outcome is determined.

47.3 If the respondent is the **Society**, one or more **Officers** or jointly an **Officer** and a **Member** may exercise the right on behalf of the **Society**.

47.4 Without limiting the manner in which a respondent may be given a right to be heard, a respondent must be taken to have been given the right if—

a. the respondent is fairly advised of all allegations concerning the respondent, with sufficient details and time given to enable the respondent to prepare a response; and
b. the respondent has a reasonable opportunity to be heard in writing or at an oral hearing (if one is held); and
c. an oral hearing is held if the decision maker considers that an oral hearing is needed to ensure an adequate hearing; and
d. an oral hearing (if any) is held before the decision maker; and

e. the respondent's written statement or submissions (if any) are considered by the decision maker.

48. Investigating and determining dispute

48.1 The **Society** must, as soon as is reasonably practicable after receiving or becoming aware of a complaint made in accordance with its **Constitution**, ensure that the dispute is investigated and determined.

48.2 Disputes must be dealt with under the **Constitution** in a fair, efficient, and effective manner and in accordance with the provisions of the **Act**.

49. Society may decide not to proceed further with complaint

49.1 Despite the 'Investigating and determining dispute' rule above, the **Society** may decide not to proceed further with a complaint if—

a. the complaint is considered to be trivial; or
b. the complaint does not appear to disclose or involve any allegation of the following kind:
    1. that a **Member** or an **Officer** has engaged in material misconduct:
    2. that a **Member**, an **Officer**, or the **Society** has materially breached, or is likely to materially breach, a duty under the **Society**'s **Constitution** or bylaws or the **Act**:
    3. that a **Member**'s rights or interests or **Members**' rights or interests generally have been materially damaged:
    4. that the physical or emotional safety of a **Member** or an **Officer** or a **Tamariki School Community Member** has been damaged or threatened by a **Member**, **Officer** or the **Society** through neglecting or enacting the purposes or functions of the **Society**:
c. the complaint appears to be without foundation or there is no apparent evidence to support it; or
d. the person who makes the complaint has an insignificant interest in the matter; or
e. the conduct, incident, event, or issue giving rise to the complaint has already been investigated and dealt with under the **Constitution**; or
f. there has been an undue delay in making the complaint
g. the **Committee** deems that all or part of the complaint should be referred to the Tamariki School Board for investigation and determination, then the Society's investigation of all or part of the complaint can cease, in accord with the division of responsibilities between the **Society** and the Board, and in accord with the **Memorandum of Understanding** between the **Society** and the Board and with 50.2 in the Constitution

50. Society may refer complaint

50.1 The **Society** may refer a complaint to—

a. a subcommittee or an external person to investigate and report; or
b. a subcommittee, an arbitral tribunal, or an external person to investigate and make a decision.

50.2 The **Society** or **Officers** must advise the complainant to refer their complaint to the Tamariki School Board when the complaint is concerned with staff conduct or child safety. The **Society**

or **Officers** will fulfil their responsibilities to notify the Tamariki School Principal and/or the Board Chairperson in the case of serious concerns.

50.3 The **Society** may, with the consent of all parties to a complaint, refer the complaint to any type of consensual dispute resolution (for example, a **Special Character** small meeting, mediation, facilitation, or a tikanga-based practice).

51. Decision makers

51.1 A person may not act as a decision maker in relation to a complaint if 2 or more members of the **Committee** or a complaints subcommittee consider that there are reasonable grounds to believe that the person may not be—

a. impartial; or
b. able to consider the matter without a predetermined view.

Liquidation and removal from the register

52. Resolving to put society into liquidation

52.1 The **Society** may be liquidated in accordance with the provisions of Part 5 of the **Act**.

52.2 The **Committee** shall give 20 **Working Days** written **Notice** to all **Members** of the proposed resolution to put the **Society** into liquidation.

52.3 The **Committee** shall also give written **Notice** to all **Members** of a **Special General Meeting** at which any such proposed resolution is to be considered. The **Notice** shall include all information as required by section 228(4) of the **Act**.

52.4 Any resolution to put the **Society** into liquidation must be passed by a two-thirds majority of all **Members** present and voting.

53. Resolving to apply for removal from the register

53.1 The **Society** may be removed from the Register of Incorporated Societies in accordance with the provisions of Part 5 of the **Act**.

53.2 The **Committee** shall give 20 **Working Days** written **Notice** to all **Members** of the proposed resolution to remove the **Society** from the Register of Incorporated Societies.

53.3 The **Committee** shall also give written **Notice** to all **Members** of a **Special General Meeting** at which any such proposed resolution is to be considered. The **Notice** shall include all information as required by section 228(4) of the **Act**.

53.4 Any resolution to remove the **Society** from the Register of Incorporated Societies must be passed by a two-thirds majority of all **Members** present and voting.

54. Surplus assets

54.1 If the **Society** is liquidated, or removed from the Register of Incorporated Societies, no distribution shall be made to any **Member,** and if any property remains after the settlement of the **Society**'s debts and liabilities, that property must be given or transferred to another not-for-profit organisation which promotes child welfare and wellbeing or for a similar charitable purpose or purposes as defined in section 5(1) of the Charities Act 2005.

Alterations to the constitution

55. Amending this constitution

55.1 All amendments must be made in accordance with this **Constitution**. Any minor or technical amendments shall be notified to **Members** as required by section 31 of the **Act**.

55.2 The **Society** may amend or replace this **Constitution** at a **General Meeting** by a resolution passed by a two-thirds majority of those **Members** present and voting.

55.3 That amendment may be approved by a resolution passed in lieu of a meeting as authorised in 17.10 of this **Constitution**.

55.4 At least 10 **Working Days** before the **General Meeting** at which any amendment is to be considered the **Committee** shall give to all **Members** notice of the proposed resolution, the reasons for the proposal, and any recommendations the **Committee** has.

55.5 When an amendment is approved by a **General Meeting** it shall be notified to the Registrar of Incorporated Societies in the form and manner specified in the **Act** for registration, and shall take effect from the date of registration.

55.6 As the **Society** is registered as a charity under the Charities Act 2005 the amendment shall also be notified to Charities Services as required by section 40 of that Act.

Bylaws

56. Making and amending bylaws

56.1 The **Society** from time to time may make and amend bylaws, and policies for the conduct and control of **Society** activities and codes of conduct applicable to **Members**, but no such bylaws, policies or codes of conduct applicable to **Members** shall be inconsistent with this **Constitution**, the **Act**, regulations made under the **Act**, or any other legislation.